

HOUSE No. 115

The Commonwealth of Massachusetts

PRESENTED BY:

Antonio F. D. Cabral

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to create the department of marine fisheries resources.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>1/9/2025</i>

HOUSE No. 115

By Representative Cabral of New Bedford, a petition (accompanied by bill, House, No. 115) of Antonio F. D. Cabral for legislation to establish a division of marine fisheries resources within the Department of Fish and Game of the Executive Office of Energy and Environmental Affairs. Agriculture.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 759 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to create the department of marine fisheries resources.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 130 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended, by striking out, in line 26, “division of marine fisheries” and
3 inserting in place thereof the following: “division of marine fisheries resources.”

4 SECTION 2. Chapter 130 of the General Laws, as so appearing, is hereby amended by
5 striking out section 1A and inserting in place thereof the following:

6 Section 1A. The division of marine fisheries resources shall be within the department in
7 the executive office of environmental affairs and shall be under the administrative supervision of
8 a director who shall be called the director of marine fisheries resources. The director of the
9 division of marine fisheries resources shall be appointed and may be removed by the

commissioner of the department of fish and game with the approval of the marine fisheries advisory commission. The said division of marine fisheries resources shall:

(a) Promote and develop the commercial fishing industry; investigate improved methods of marketing and distributing commercial fish products within the commonwealth; and establish standards and design labels for the identification of commercial fish products processed, prepared or packed for distribution and for retail sales.

(b) Improve the conditions for fishermen, fish processors, and other shoreside industries.

(c) Collect and disseminate catch data as well as statistics about the fish and shellfish brought into, processed, marketed, stored, or held within the commonwealth, and make such statistics available to the public from time to time and the location thereof.

(d) Arrange lectures and issues for the general distribution of such publications best adapted to promote the interests of commercial fisheries.

(e) Establish and maintain properties at such places within the commonwealth for the purpose of propagating, rearing, and protecting fish.

(f) Enter into agreements with public or private entities, including the University of Massachusetts, to perform fish counts and fish stock analyses or other fisheries research.

(g) Publish reports or recommendations based on fish counts, fish stock analyses, or other fisheries research.

(h) Advise the Governor of the potential impact of regulation on the fishing industry and cooperate with all departments, boards, officials, and institutions of the commonwealth or its subdivisions that may be concerned in any way with matters under its supervision.

(i) Co-operate with other states, with the United States of America or any agency thereof, with other nations and with any other agencies as may be authorized by the general court, and receive and dispense such funds from any of such agencies, states or governments as may be authorized by the general court; and

(j) Oversee the division of marine fisheries resources and all its functions and administer all the laws relating to marine fisheries as appearing in chapter one hundred and thirty and any other general or special laws, except as pertaining to the enforcement thereof.

SECTION 3. Section 1B of chapter 130, as so appearing, is hereby amended by striking out, in line 1, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

SECTION 4. Section 74 of said chapter 130, as so appearing, is hereby amended as follows:

(a) striking out, in line 1, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”; and

(b) striking out, in line 8, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”; and

(c) striking out, in lines 10-11, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

(d) striking out, in line 26, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

(e) striking out, in line 36, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

(f) striking out, in line 41, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

(g) striking out, in line 44, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

(h) striking out, in lines 45-46, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

(i) striking out, in lines 51-52, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

(j) striking out, in line 58, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

(k) striking out, in lines 62-63, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

SECTION 5. Section 76 of said chapter, as so appearing is hereby amended by striking out, in line 1, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

SECTION 6. Section 77 of said chapter 130, as so appearing, is hereby amended by striking out, in lines 2-3, the words “division of marine fisheries” and inserting in place thereof the following words: - “division of marine fisheries resources”.

71 SECTION 7. Section 80 of said chapter 130, as so appearing, is hereby amended by
72 striking out, in line 25, the words “division of marine fisheries” and inserting in place thereof the
73 following words: “division of marine fisheries resources”